

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Co., Ltd., Samsung SDS Asia Pacific Pte Ltd., and Samsung
Electronics Logitech Company, Limited**

**PROOF OF SERVICE ON THIRD-PARTY
RESPONDENT SAMSUNG ELECTRONICS CO., LTD.**

Third-Party Complainant COSCO Shipping Lines Co. Ltd. (“COSCO”), by and through undersigned counsel and pursuant to Federal Maritime Commission’s Rules of Practice and Procedure 46 C.F.R. § 502.113(c), hereby submits proof of service of the Third-Party Complaint and Notice of Filing of same on Third-Party Respondent Samsung Electronics Co., Ltd. (“SEC”). On July 16, 2025, pursuant to the attached Affidavit of Service, SEC was served in accordance with the Hague Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters of November 15, 1965 at 8:27 am by mail. *See* Exhibit A attached hereto.¹

¹ Although 46 C.F.R. § 502.113(c) provides that the affidavit of service “be filed with the Secretary within five days following service,” undersigned counsel for COSCO submits that there is good cause for the late filing because it did not receive the notice and affidavit of service on SEC from the Central Authority of the Republic of Korea by mail until August 6, 2025. Thereafter, pursuant to 46 C.F.R. § 502.7, COSCO sought to obtain a certified translation. *See* Exhibit B attached hereto.

Dated: August 11, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

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***Attorneys for Third-Party Complainant,
COSCO Shipping Lines Co., Ltd.***

CERTIFICATE OF SERVICE

I certify that on the 11th day of August, 2025, a true and correct copy of the foregoing document, **Proof of Service on Third-Party Respondent Samsung Electronics Co., Ltd.**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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/s/ Martha Medina

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EXHIBIT A

회 신 서

미국 연방 해사위원회(무국적) 귀하

공조번호 : 2025-D-556

사건번호 : 2025러23

촉탁국가 : 무국적 *미국*

이 법원이 촉탁 받은 송달서류는 붙임 증명서와 같이 송달이 이루어졌으므로,
그 결과를 회신합니다.

- 붙임 : 1. 증명서(Certificate) 1부.
2. 우편송달통지서 1부. 끝.

2025. 7. 18.

수 원 지 방 법 원 장

CERTIFICATE

증명서

The undersigned authority has the honour to certify, in conformity with article 6 of the Convention.

아래 당국은 협약 제6조에 따라 다음 사항을 확인하는 바입니다.

1) that the document has been served*

문서가 다음과 같이 송달됨*

- the (date) (일자) 2025. 7. 16.

- at (place, street, number) (장소) 수원시 영통구 삼성로 129 (매탄동, 삼성전자)

- in one of the following methods authorised by article 5 :

제5조가 규정하는 다음의 방식에 의함

a) in accordance with the provisions of sub-paragraph (b) of the first paragraph of article 5 of the Convention*

협약 제5조 제1단 제1호의 규정에 따름*

b) ~~in accordance with the following particular method*~~ :

~~다음의 특정방식에 의함*~~

c) ~~by delivery to the addressee, who accepted it voluntarily*~~

~~임의로 수령하는 수신인에게 교부함*~~

The documents referred to in the request have been delivered to :

요청서에 언급된 문서는 다음의 사람에게 교부됨

- (identity and description of person) (교부받은 자의 표시)

장민정

- relationship to the addressee (family, business or other) 수신인과의 관계 (가족, 고용관계 및 기타) :

직장동료

2) ~~that the document has not been served, by reason of the following facts*~~ :

~~문서는 다음의 사유로 인하여 송달되지 못함*~~

~~In conformity with the second paragraph of article 12 of the Convention, the applicant is requested to pay or reimburse the expenses detailed in the attached statement*.~~

~~협약 제12조 제2단에 따라 신청인은 첨부된 진술서에 기재된 비용을 지불 또는 상환하여야 함*~~

b

Annexes

첨부서류

~~Documents returned :~~

In appropriate cases, documents establishing the service :

적절한 경우, 송달을 증명하는 문서

우편송달통지서

Done at (장소) 수원지방법원

the (일자) 2025. 7. 18.

Signature and/or stamp

서명 또는 날인 수원지방법원 민사신청과
법원주사보 김은영



* Delete if inappropriate.

* 적절하지 아니한 경우에는 삭제합니다.

2025러23

우편송달통지서

발송일:2025.7.14. 요금:5,830원

사법공조		배달 못한 사유				
		구분/회수	1회	2회	3회	
0. 송달서류 사법공조(촉탁서류)		1. 수취인부재				
		2. 폐문 부재				
		3. 수취인불명				
		4. 주소 불명				
		5. 이사 불명				
		6. 기타				
		7. 잘못된송달				
		배달 날짜				
		집배원 확인	최대연 ㉠			
		사유 기재				
송달방법		영수인				
		이름	관계	서명 또는 날인		
1	본인에게 주었다.			장민정		
2	본인을 만나지 못하여 ① 내지 ③ 사람에게 주었다.	① 본인 영업소, 사무소의 사무원 또는 피용자				
		② 본인 주소, 거소의 동거인				
		③ 본인 근무장소의 사용자, 종업원 등	장민정			직장동료
3	① 내지 ③ 사람이 수령을 거부하므로 그 장소에 서류를 두었다.	① 송달 받을 본인				
		② 본인 영업소, 사무소의 사무원 또는 피용자				
		③ 본인 주소, 거소의 동거인				
송달한 날짜		2025년 7월 16일 08:27				
송달장소		수원시 영통구 삼성로 129 (매탄동, 삼성전자)				
접수인란		위와 같이 송달하였습니다. 2025러23				
		2025년 7월 16일 동수원 우체국 우체국집배원 최대연 ㉠ 7644809				

- 주의 : 1. 송달방법 중 해당하는 항목(송달방법 ③의 경우에는 수령을 거부한 사람)의 영수인란에 이름 및 관계를 적기 바랍니다(송달방법 ② ③ 란은 송달받을 사람의 근무장소에서 송달서류를 전달한 경우에 한하여 그 내용을 적기 바랍니다).
2. 송달받은 사람으로 하여금 영수인란에 직접 서명 또는 날인하게 하기 바랍니다. 집배원이 대필한 경우에는 "대필"이라고 적어야 합니다. 송달방법 ③의 경우에는 모두 집배원이 서명 또는 날인하기 바랍니다.
3. 「송달장소」란에는 시·군·읍·면·동·번지 등을 상세하게 명확히 기입하기 바랍니다. 다만, 우체국 창구에서 교부한 때에는 "○○우체국 창구"라고만 적기 바랍니다.
4. 우측 상단의 「배달 못한 사유」 중 「6. 기타」란에는 1 내지 5의 송달불능사유 어디에도 해당되지 아니하는 경우에 표시하고, 「사유기재란」에는 위와 같은 사유 및 우편집배원이 배달하는 과정에서 알게 된 특이사항(예 : 송달받을 사람의 장기여행, 군 입대, 교도소 수감 등)을 간략히 적기 바랍니다.

EXHIBIT B

REPLY

To the Federal Maritime Commission of the United States (Stateless)

Mutual Assistance No.: 2025-D-556

Case No.: 2025-Reo-23

Commissioning Country: ~~Stateless~~ [handwritten:] *United States of America*

We are replying to advise that the documents to be served that were commissioned to this court has been served as shown in the attached certificate.

Attachment:	1. Certificate	1 set	
	2. Notice of Postal Service	1 set.	END

July 18, 2025

Chief Judge of Suwon District Court

CERTIFICATE

The undersigned authority has the honour to certify, in conformity with article 6 of the Convention,

1) that the document has been served*

- the (date) July 16, 2025
- at (place, street, number) (place) 129 Samsung-ro, Yeongtong-gu, Suwon-si (Metan-dong, Samsung Electronics)
- in one of the following methods authorised by article 5 :
 - a) in accordance with the provisions of sub-paragraph (b) of the first paragraph of article 5 of the Convention*
 - b) in accordance with the following particular method* :
 - c) by delivery to the addressee, who accepted it voluntarily*

The documents referred to in the request have been delivered to :

- (identity and description of person)
Min-jeong Jang
- relationship to the addressee (family, business or other) :
Coworker

2) that the document has not been served, by reason of the following facts* :

In conformity with the second paragraph of article 12 of the Convention, the applicant is requested to pay or reimburse the expenses detailed in the attached statement*.

b

Annexes

Documents returned :

In appropriate cases, documents establishing the service :

Notice of Postal Service

Done at (Place) Suwon District Court

the (Date) July 18, 2025

Signature and/or stamp

**Suwon District Court Civi Application Dept.
Court Clerk Eun-yeong Kim**

* Delete if inappropriate.

[seal:] Seal of Court Clerk of Suwon District
Court

Judicial Mutual Assistance			Reason for Non-Delivery				
			Category/Recovery	1 st attempt	2 nd attempt	3 rd attempt	
0. Documents served Judicial Mutual Assistance (Commissioned documents) Suwon District Court (Postal Code: 16512) 0. Sender Court Clerk Eun-yeong Kim 0. Person served 16677 129 Samsung-ro, Yeongtong-gu, Suwon-si (Metan-dong, Samsung Electronics) Respondent Samsung Electronics Co., Ltd.			1. Recipient absent				
			2. Vacancy				
			3. Unidentified recipient				
			4. Unidentified address				
			5. Unidentified new address				
			6. Other				
			7. Incorrect service				
			Delivery date				
			Mail carrier's confirmation	Dae-yeon Choi (Seal)			
			Enter reason				
Method of Service		Receiver					
		Name	Relationship	Signature or Seal			
1	Handed to the person served			[hw:] Min-jeong Jang			
2	Person served unavailable. Handed to the person described in (1) to (3).	(1) Worker or employee of the business/office of the person served					
		(2) Cohabitant at the address/residence of the person served					
		(3) Employee, staff, etc. of the place of business of the person served	Min-jeong Jang				Coworker
3	Person described in (1) to (3) declined to accept, and the document was left at the place.	(1) Person served					
		(2) Worker or employee of the business/office of the person served					
		(3) Cohabitant at the address/residence of the person served					
Date of Service		July 16, 2025 08:27					
Place of Service		129 Samsung-ro, Yeongtong-gu, Suwon-si, (Metan-dong, Samsung Electronics)					
For Use by Acceptor		Served as described above. 2025-Reo-23					
		July 16, 2025 East Suwon Post Office Judicial Mutual Assistance Mail carrier of the Post Office Dae-yeon Choi (Seal) 7644809					

Special Notes: 1. Make sure to enter the name and relationship in the section for receiver of the corresponding category of service method (In the case of Method of Service 3, the person that declined receipt.) (For Method of Service 2 (3), enter the information only if the documents to be served were delivered in the recipient's place of business.)

2. Please have the recipient to sign/seal directly in the section for receiver. If the mail carrier entered the information on behalf, make sure to indicate "entered on behalf". In the case of Method of Service 3, the mail carrier must sign or seal.

3. In the section for "Place of Service", enter the exact si, gun, eup, myeon, dong, no., etc. clearly. However, when delivered at a post office's counter, enter "OO Post Office, counter" only.

4. For "Reason for non-delivery" at the top right corner, check "6. Other" when the circumstance does not correspond to any one of the reasons for non-delivery described in 1 through 5. In the section for "Enter reason", provide a brief description of the above-described reason and any notable information learned by the mail carrier in the process of delivery (examples: Recipient's long-term travel, military service, imprisonment, etc.)



TRANSPERFECT

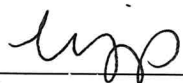
City of New York, State of New York, County of New York

I, Jacqueline Yorke, hereby certify that the documents “**Reply Letter dated July 23, 2025,**” “**Certificate dated July 18, 2025,**” and “**Notice of Postal Service**” are, to the best of my knowledge and belief, a true and accurate translation from Korean into English.



Jacqueline Yorke

Sworn to before me this
August 11, 2025



Signature, Notary Public



Stamp, Notary Public